

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Keyne Jean Villert	Team: Team # 3	CCRB Case #: 201309152	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/18/2013 2:25 AM	Location of Incident: Intersection of 7th Avenue and West 145th Street, and inside the 32nd Precinct stationhouse	Precinct: 32	18 Mo. SOL 3/18/2015	EO SOL 3/18/2015	
Date/Time CV Reported Tue, 10/01/2013 8:23 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 10/01/2013 8:23 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Erin Conte	22466	948806	032 PCT
2. POM Carlos Gonzalez	18642	940200	032 PCT
3. SGT Leonard Villegas	04194	946373	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Carlos Gonzalez	Abuse: At the intersection of 7th Avenue and West 145th Street in Manhattan, Officer Carlos Gonzalez refused to provide his name to § 87(2)(b)	
B.POF Erin Conte	Abuse: Inside the 32nd Precinct stationhouse, Officer Erin Conte did not process § 87(2)(b)'s complaint regarding an officer.	
C.SGT Leonard Villegas	Abuse: Inside the 32nd Precinct stationhouse, Sergeant Leonard Villegas did not process § 87(2)(b)'s complaint regarding an officer.	

Case Summary

On October 1, 2013, § 87(2)(b) filed this complaint with the Civilian Complaint Review Board (CCRB) via telephone.

On September 18, 2013, at approximately 2:25 a.m., § 87(2)(b) was inside his double parked vehicle, at the intersection of 7th Avenue and West 145th Street in Manhattan, when PO Carlos Gonzalez, from the 32nd Precinct, approached him in an unmarked patrol car. The following allegations resulted:

- **Allegation A – Abuse of Authority: At the intersection of West 145th Street and 7th Avenue in Manhattan, Officer Carlos Gonzalez refused to provide his name to**

§ 87(2)(b)

§ 87(2)(g)

- **Allegation B – Abuse of Authority: Inside the 32nd Precinct stationhouse, Officer Erin Conte did not process § 87(2)(b)'s complaint regarding an officer.**

§ 87(2)(g)

- **Allegation C – Abuse of Authority: Inside the 32nd Precinct stationhouse, Sergeant Leonard Villegas did not process § 87(2)(b)'s complaint regarding an officer.**

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) rejected mediation at the time of his sworn statement.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) old at the time of the incident. He is a Hispanic man who is 5'10" tall, weighs 180 pounds, and has black hair and brown eyes.

CCRB Testimony

On November 15, 2013, § 87(2)(b) was interviewed at the CCRB (encl. F2). His statement is summarized below.

On September 18, 2013, at approximately 2:25 a.m., § 87(2)(b) was inside his double parked vehicle at the intersection of 7th Avenue and West 145th Street in Manhattan, with his friend, § 87(2)(b). § 87(2)(b)'s car windows were shut. At some point, an unmarked patrol car pulled up behind § 87(2)(b)'s car and an officer, identified via investigation as PO Gonzalez eventually approached § 87(2)(b) who was seated on the driver seat.

PO Gonzalez first requested § 87(2)(b)'s driver's license and car registration. § 87(2)(b) eventually gave PO Gonzalez his license and his expired car insurance card. PO Gonzalez eventually issued § 87(2)(b) summonses for § 87(2)(b).

Towards the end of the interaction, § 87(2)(b) asked PO Gonzalez for his name and PO Gonzalez replied that the requested information was listed on the summonses. PO Gonzalez did not verbally provide his name to § 87(2)(b).

Soon thereafter, § 87(2)(b) drove to the 32nd Precinct stationhouse, entered it, and spoke with an officer, identified via investigation as PO Erin Conte, from the 32nd Precinct, who was seated at a desk behind a glass window. § 87(2)(b) asked PO Conte whether he could file a complaint against PO Gonzalez, and PO Conte replied, "We don't make complaints here for an officer." PO Conte also directed him to call the CCRB to file the complaint. Another officer, identified via investigation as Sergeant Leonard Villegas, also from the 32nd Precinct, was seated to PO Conte's right and also stated to § 87(2)(b) that he could not file the complaint at the stationhouse. § 87(2)(b) described Sergeant Villegas as a Hispanic man in his late twenties, who is approximately 6' tall, has black hair, and has a slim or muscular build.

At some point, § 87(2)(b) asked PO Conte for her name; however, he could not recall whether she verbally provided the requested information. Soon thereafter, § 87(2)(b) left the stationhouse.

Witness: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) old at the time of the incident. She is a Hispanic woman who is 5'8" tall, weighs 200 pounds, and has brown hair and brown eyes. § 87(2)(b)

CCRB Testimony

On November 15, 2013, § 87(2)(b) was interviewed at the CCRB (encl. G2). § 87(2)(g)

§ 87(2)(b) confirmed that § 87(2)(b) had parked his car and that PO Gonzalez then eventually approached the car inside of which they were still seated. § 87(2)(b) confirmed that § 87(2)(b) asked PO Gonzalez for his name, to which he only replied that the requested information was listed on the summonses issued to him.

§ 87(2)(b) confirmed that § 87(2)(b) went inside the stationhouse; however, § 87(2)(b) stated that she did not accompany him and that she instead waited inside his car.

NYPD Statements:

Subject Officer: OFFICER CARLOS GONZALEZ

- PO Gonzalez was § 87(2)(b) old at the time of the incident. He is a Hispanic man, is 5'10" tall, weighs 200 pounds, and has black hair and brown eyes.
- On September 18, 2013, PO Gonzalez was assigned to Highway Safety. PO Gonzalez was dressed in uniform and was working alone in an unmarked patrol car. PO Gonzalez worked from 11:15 p.m. on September 17, 2013, to 7:50 a.m. on September 18, 2013.

Memo Book

At 2:25 a.m., PO Gonzalez stopped § 87(2)(b)'s vehicle at the intersection of 7th Avenue and West 145th Street. At 2:35 a.m., PO Gonzalez issued § 87(2)(b) summons numbers § 87(2)(b) and § 87(2)(b) for § 87(2)(b) and § 87(2)(b). § 87(2)(b) was accompanied by a female passenger (encl. H1-H6).

Vehicular Traffic Law (VTL) Summonses

VTL summons number § 87(2)(b) shows that § 87(2)(b) was issued a summons for § 87(2)(b) (encl. I1).

VTL summons number § 87(2)(b) shows that § 87(2)(b) was also issued a summons for § 87(2)(b) (encl. I2).

CCRB Statement

On December 17, 2013, PO Gonzalez was interviewed at the CCRB (encl. K1-K2). His statement is summarized below.

On September 18, 2013, at approximately 2:25 a.m., PO Gonzalez observed a vehicle driving at the intersection of 7th Avenue and West 145th Street with windows having an illegal level of tint. PO Gonzalez knew the level of tint was illegal from his training.

PO Gonzalez first stopped the vehicle and eventually approached its driver, § 87(2)(b). PO Gonzalez eventually issued § 87(2)(b) summonses for § 87(2)(b) and § 87(2)(b). At some point, § 87(2)(b) asked PO Gonzalez for his name. PO Gonzalez verbally provided § 87(2)(b) the requested information and added that his name was also listed on the summonses issued to him. Soon thereafter, PO Gonzalez returned to his patrol car and resumed patrol.

Subject Officer: OFFICER ERIN CONTE

- PO Conte was § 87(2)(b) old at the time of the incident. She is a white woman, is 5'5" tall, weighs 160 pounds, and has brown hair and brown eyes.
- On September 18, 2013, PO Conte was assigned as the telephone switchboard operator. PO Conte was dressed in uniform and was working alone. PO Conte worked the same tour as PO Gonzalez.

Memo Book

PO Conte did not prepare a memo book entry related to this incident (encl. L1-L2).

CCRB Testimony

On December 16, 2013, PO Conte was interviewed at the CCRB (encl. N1-N2). Her statement is summarized below.

On September 18, 2013, at approximately 2:25 a.m., PO Conte was seated at a desk located in the vicinity of the civilian waiting room inside the stationhouse. A sergeant, whom she could not recall, was seated to her right.

PO Conte was shown a picture of § 87(2)(b) who she identified as a civilian with whom she has had a conversation at the stationhouse. PO Conte could not recall her conversation with § 87(2)(b). However, PO Conte recalled speaking with an individual, around the time of the incident, who could have been § 87(2)(b). PO Conte only recalled telling the individual that he could contest his summonses in court. PO Conte may have also informed the individual that he could file a civilian complaint against an officer with the CCRB to report any misconduct. PO Conte could not recall whether the individual asked her whether he could file a civilian complaint at the stationhouse. PO Conte did not know whether that person requested her name, nor could she recall verbally providing it to him. PO Conte did not know whether that individual spoke with any additional officers.

PO Conte stated that, to her knowledge, a civilian cannot file a civilian complaint against an officer at the stationhouse due to integrity issues. As far as she knew, PO Conte has not observed any civilian complaints against officers being processed at her stationhouse. In cases where civilians wish to file such a complaint, PO Conte instructs them to either call the Internal Affairs Bureau (IAB) or the CCRB.

Subject Officer: SERGEANT LEONARD VILLEGAS

- *Sergeant Villegas was § 87(2)(b) old at the time of the incident. He is a Hispanic man, is 6' tall, weighs 205 pounds, and has black hair and brown eyes.*
- *On September 18, 2013, Sergeant Villegas was assigned as the desk sergeant. Sergeant Villegas was dressed in uniform and was working alone. Sergeant Villegas worked the same tour as PO Gonzalez and PO Conte.*

Memo Book

Sergeant Villegas did not prepare a memo book entry related to this incident (encl. O1-O3).

CCRB Testimony

On February 24, 2014, Sergeant Villegas was interviewed at the CCRB (encl. Q1-Q2). His statement is summarized below.

On September 18, 2013, at approximately 2:25 a.m., Sergeant Villegas was assigned to the 32nd Precinct stationhouse desk with PO Conte who was assigned to the telephone switchboard. Sergeant Villegas was seated next to PO Conte around the time of the incident. Sergeant Villegas conceded that given their positioning, he could have heard the conversation between PO Conte and a civilian while being seated at his desk. However, Sergeant Villegas stated that he did not remember the incident.

Sergeant Villegas was given a synopsis of the incident and was shown a picture of § 87(2)(b) neither of which helped him remember the incident. Sergeant Villegas did not remember whether an individual matching § 87(2)(b)'s description attempted to file a civilian complaint against an officer or complained about being issued summonses around the time of the incident. Sergeant Villegas denied informing any civilians that they could not file a civilian complaint against an officer at the stationhouse around the time of the incident. Sergeant Villegas added that civilians

can file civilian complaints with him after first approaching the telephone switchboard operator about it.

NYPD Documents

32nd Precinct Roll Call

The Roll Call from the date of the incident indicates that PO Gonzalez was assigned as a safety officer and was working alone in vehicle number § 87(2)(b) whereas PO Conte was the telephone switchboard operator and Sergeant Villegas was the desk sergeant (encl. R1-R5).

32nd Precinct Vehicle Assignment Sheet

The Vehicle Assignment Sheet indicates that vehicle number § 87(2)(b) an unmarked patrol car, was assigned to PO Gonzalez (encl. S).

Attempt to Request 32nd Precinct Command Log

On November 26, 2013, a copy of the Roll Call from the time of the incident was requested through IAB. The requested document was received at a later date; however, the wrong tour was provided by IAB (encl. T1-T6).

Summons for Incident and Disposition

- On March 6, 2014, the undersigned investigator called the New York State Department of Motor Vehicles Summons Disposition Unit to follow-up on the disposition of the VTL summonses issued to § 87(2)(b) as a result of this incident. However, no one answered the phone and the undersigned investigator was thus unable to determine the disposition of the summonses.

Status of Civil Proceedings

- As of March 28, 2014, approximately three months following the expiration of the filing deadline, § 87(2)(b) has not filed a notice of claim with the City of New York in regards to this incident (encl. W).

Civilian Criminal History

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
■ § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
■ § 87(2)(b)
§ 87(2)(b)

Civilian CCRB History

- § 87(2)(b) has filed the following CCRB complaint:

- § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Subject Officers CCRB History

- PO Gonzalez has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl. B1).

- PO Conte has been a member of the service for three years and there are no substantiated CCRB allegations against her (encl. B2).
- Sergeant Villegas has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. B3).

Conclusion

Identification of Subject Officers

PO Gonzalez and PO Conte both admitted to interacting with § 87(2)(b). Although Sergeant Villegas could not remember the incident, he admitted to being present inside the stationhouse, on desk duty, at the time of the incident, which was corroborated by his memo book. Furthermore, Sergeant Villegas' pedigree information also closely matched the physical description of a subject officer provided by § 87(2)(b).

Investigative Findings and Recommendations

Allegation Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A – Abuse of Authority: At the intersection of West 145th Street and 7th Avenue in Manhattan, Officer Carlos Gonzalez refused to provide his name to § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) corroborated that § 87(2)(b) requested PO Gonzalez' name and that PO Gonzalez did not verbally provide his name and instead told him that it was listed on the summonses he had been issued. PO Gonzalez stated that he verbally provided his name to § 87(2)(b) upon request, and that he added that the information would also be listed on the summonses.

§ 87(2)(g)

Allegation B – Abuse of Authority: Inside the 32nd Precinct stationhouse, Officer Erin Conte did not process § 87(2)(b)'s complaint regarding an officer.

§ 87(2)(b) stated that he asked PO Conte whether he could file a civilian complaint at the stationhouse against PO Gonzalez, and that PO Conte allegedly replied, "We don't make complaints here for an officer."

Although PO Conte stated she could not remember her conversation with § 87(2)(b) she stated that she may have instructed an individual, around the time of the incident, to contact the CCRB for purposes of filing a civilian complaint. PO Conte added that she was not aware that

civilian complaints could be filed at the stationhouse, and that she usually instructs civilians to call the CCRB or IAB to file such complaints.

According to Patrol Guide Procedure 207-31 (encl. A1-A7), civilian complaints against officers can be filed at a precinct stationhouse. In addition, officers receiving civilian complaints of officer misconduct must report the complaint to either the CCRB or IAB, depending on the allegations.

§ 87(2)(g)

§ 87(2)(g)

Allegation C – Abuse of Authority: Inside the 32nd Precinct stationhouse, Sergeant Leonard Villegas did not process § 87(2)(b)'s complaint regarding an officer.

§ 87(2)(b) stated that after he asked PO Conte whether he could file a civilian complaint against PO Gonzalez at the stationhouse, Sergeant Villegas eventually told him that he could not do so. PO Conte stated that she did not know whether § 87(2)(b) spoke with Sergeant Villegas, and Sergeant Villegas stated that he did not remember the incident. However, Sergeant Villegas did indicate that, § 87(2)(g) civilians can file civilian complaints against officers with him after first approaching the telephone switchboard operator about it.

§ 87(2)(g)

Team: 3

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date